

The Forest (Conservation) Amendment Act, 2023

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Union of India - Act

The Forest (Conservation) Amendment Act, 2023

UNION OF INDIA

India

The Forest (Conservation) Amendment Act, 2023

Act 15 of 2023

Published in Gazette of India on 4 August 2023

Not commenced

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An Act further to amend the Forest (Conservation) Act, 1980.

BE it enacted by Parliament in the Seventy-fourth Year of the Republic of India as follows:?

1.

Short title and commencement.

(1)

This Act may be called the Forest (Conservation) Amendment Act, 2023.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Insertion of preamble.

In the Forest (Conservation) Act, 1980 (hereinafter referred to as the principal Act), after the long title and before the

enacting formula, the following preamble shall be inserted, namely:?

"WHEREAS, the importance of forests is to be realised to enable achievement of national targets of Net Zero Emission by 2070 and maintain or enhance the forest carbon stocks through ecologically balanced sustainable development;
AND WHEREAS, Nationality Determined Contribution targets of the country envisage creating carbon sink of additional 2.5 to 3.0 billion tons of CO₂ equivalent by 2030;
AND WHEREAS, the country envisages an increase in the forest and tree cover to one-third of its land area, which is to be given impetus with an enhanced growth trajectory;
AND WHEREAS, India has a rich tradition of preserving forests and their bio-diversity, and, therefore, enhancing forest based economic, social and environmental benefits, including improvement of livelihoods for forest dependent communities is envisaged;
AND WHEREAS, it is necessary to provide for provisions relating to conservation management and restoration of forests, maintaining ecological security, sustaining cultural and traditional values of forests and facilitating economic needs and carbon neutrality."

3.

Insertion of new section 1.

In section 1 of the principal Act, in sub-section (1), for the words and brackets

"Forest (Conservation)Act", the words and brackets "Van (Sanrakshan Evam Samvardhan) Adhiniyam" shall be substituted.

4.

Insertion of new section 1A.

After section 1 of the principal Act, the following section shall be inserted, namely:?

1A. Act to cover certain land.

(1)

The following land shall be covered under the provisions of this Act, namely:?

(a)

the land that has been declared or notified as a forest in accordance with the provisions of the Indian Forest Act, 1927 or under any other law for the time being in force;

(b)

the land that is not covered under clause (a), but has been recorded in Government record as forest, as on or after the 25th October, 1980:

Provided that the provisions of this clause shall not apply to such land, which has been changed from forest use to use for non-forest purpose on or before the 12th December, 1996 in pursuance of an order, issued by any authority authorised by a State Government or an Union territory Administration in that behalf.

Explanation.?For the purposes of this sub-section, the expression

"Government record" means record held by Revenue Department or Forest Department of the State Government or Union territory Administration, or any authority, local body, community or council recognised by the State Government or Union territory Administration.

(2)

The following categories of land shall not be covered under the provisions of this Act, namely:?

(a)

such forest land situated alongside a rail line or a public road maintained by the Government, which provides access to a habitation, or to a rail, and roadside amenity up to a maximum size of 0.10 hectare in each case;

(b)

such tree, tree plantation or reforestation raised on lands that are not specified in clause (a) or clause (b) of sub-section (1); and

(c)

such forest land,?

(i)

as is situated within a distance of one hundred kilometres along international borders or Line of Control or Line of Actual Control, as the Amendment of section 1.

Act to cover certain land.

(ii)
up to ten hectares, proposed to be used for construction of security related infrastructure; or

(iii)
as is proposed to be used for construction of defence related project or a camp for paramilitary forces or public utility projects, as may be specified by the Central Government, the extent of which does not exceed five hectares in a Left Wing Extremism affected area as may be notified by the Central Government.

(3)
The exemption provided under sub-section (2) shall be subject to such terms and conditions, including the conditions of planting trees to compensate felling of trees undertaken on the lands, as the Central Government may, by guidelines, specify.?

5.
Amendment of section 2.

In the principal Act, section 2 shall be renumbered as sub-section (1) thereof and?

(a)
in sub-section (1) as so renumbered,?

(I)
in clause (iii), for the words "not owned, managed or controlled by Government", the words ", subject to such terms and conditions, as the Central Government may, by order, specify" shall be substituted;

(II)
in the Explanation, for the long line occurring after clause (b), the following shall be substituted, namely:?
"but does not include any work relating to or ancillary to conservation, development and management of forests and wildlife, such as?

(i)
silvicultural operations including regeneration operations;

(ii)
establishment of check-posts and infrastructure for the front line forest staff;

(iii)
establishment and maintenance of fire lines;

(iv)
wireless communications;

(v)
construction of fencing, boundary marks or pillars, bridges and culverts, check dams, waterholes, trenches and pipelines;

(vi)
establishment of zoo and safaris referred to in the Wild Life (Protection) Act, 1972, owned by the Government or any authority, in forest areas other than protected areas;

(vii)
eco-tourism facilities included in the Forest Working Plan or Wildlife Management Plan or Tiger Conservation Plan or Working Scheme of that area; and

(viii)
any other like purposes, which the Central Government may, by order, specify.";

(b)
after sub-section (1) as so renumbered, the following sub-section shall be inserted, namely:?
"(2) The Central Government may, by order, specify the terms and conditions subject to which any survey, such as, reconnaissance, prospecting, investigation or exploration including seismic survey, shall not be treated as non-forest purpose."

6.
Insertion of new section 3C

In the principal Act, after section 3B, the following section shall be inserted, namely:?

3C. Power of Central Government to issue directions

The Central Government may, from time to time, issue such directions, to any authority under the Central Government,

State Government or Union territory Administration, or to any organisation, entity or body recognised by the Central Government, State Government or Union territory Administration, as may be necessary for the implementation of this Act."

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